

Court No. - 3

Case :- WRIT - C No. - 9852 of 2022

Petitioner :- Jabir Hussain

Respondent :- State Of U.P. And 4 Others

Counsel for Petitioner :- Harish Chandra

Counsel for Respondent :- C.S.C.,Rajesh Yadav

Hon'ble Surya Prakash Kesarwani,J.

Hon'ble Jayant Banerji,J.

Heard learned counsels for the parties.

This writ petition has been filed praying for the following reliefs:

"i) a writ, order or direction in the nature of certiorari quashing the impugned Recovery Citation (Electricity Dues) dated 19.02.2022 issued by the respondent no.5 whereby the petitioner has been illegally directed to pay Rs.8,86,081/- as electricity charges.

ii) a writ, order or direction in the nature of Mandamus directing the respondents not to insist to pay Rs.8,86,081/- as electricity charges in pursuance of the recovery citation dated 19.02.2022 issued by the Tehsildar, Tehsil - Amroha.

ii) a writ, order or direction in the nature of Mandamus directing the respondents not to adopt any coercive method against the petitioner for recovery of aforesaid amount in view of recovery citation dated 19.02.2022."

Sri Rajesh Yadav, learned counsel for the respondent Nos.2,3 & 4 Power Distribution Corporation, states on instructions that the petitioner may file objection against the impugned demand which shall be decided in accordance with law within a time bound period.

In view of the aforesaid and without expressing any opinion on merits of the case of the petitioner, this **writ petition is disposed off** giving liberty to the petitioner to submit his/ her objection under Para 6.5 of U.P. Electricity Supply Code, 2005 before the respondent No.3, within four weeks from today along with a certified copy of this order. In the event such an objection is submitted within the stipulated period, it shall be decided by the respondent No.3 in accordance with law within next four weeks, after affording reasonable opportunity of hearing to the petitioner.

For a period of eight weeks or till disposal of the objection of the petitioner, whichever is earlier, no coercive action shall be taken against the petitioner in pursuance of the impugned demand.

Order Date :- 26.5.2022/vkg